

Laishram Sanamatum Singh vs Km. Laishram Ronika Devi on 6 August, 2024

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IN THE HIGH COURT OF MANIPUR
AT IMPHAL

MAT. APP. NO. 10 OF 2018

Laishram Sanamatum Singh, aged about 58 years, S/o
L. Ningthemjao Singh by occupation Sub-Inspector,
(now retired), a resident of Sunisiphai Mayai Leikai,
P.O. & P.S. Bishnupur, District:- Bishnupur, Manipur.

.... Appellant/Respondent

- Versus -

Km. Laishram Ronika Devi, aged about 26 years, D/o Smt. Leima Devi and L. Sanamatum Singh, a resident of Bishnupur Ward No. 4, Municipality Road, P.O. & P.S. Bishnupur, District:- Bishnupur, Manipur.

.... Respondent/Petitioner BEFORE HON'BLE THE CHIEF JUSTICE MR. SIDDHARTH MRIDUL HON'BLE MRS. JUSTICE GOLMEI GAIPHULSHILLU For the appellant : Mr. I. Lalitkumar, Sr. Advocate For the respondent : Mr. K. Achouba, Advocate Date of hearing : 08.05.2024 Date of Judgment & Order : 06.08.2024 Page 1 | 20 JUDGEMENT & ORDER (CAV) (Golmei Gaiphulshillu, J.) [1] Heard Mr. I. Lalitkumar, learned sr. counsel appears on behalf of the appellant and Mr. K. Achouba, learned counsel appears on behalf of the respondent.

[2] The present appeal has been filed by the appellant challenging the impugned Judgment and order dated 02.04.2018 passed in Cril. (Maintenance) Case No. 1 of 2018 by the Ld. Judge, Family Court, Bishnupur. In the said Cril. (Maintenance) the present appellant is the respondent and the above named respondent is the petitioner. [3] The above referred Mat (Maintenance) case No. 3 of 2016 was filed by the respondent as petitioner against the appellant as respondent under Section 20 read with Section 3 (b) of the Hindu Adoption and Maintenance Act, 1956 thereby claiming the maintenance allowances with the marriage expenses to be incurred in Marriage Ceremony. The respondent/petitioner is the daughter of Smt. Leima Devi (wife of appellant/respondent) now living with her mother along with her elder brothers.

Section 20 and Section 3(b) of the Hindu Adoption and Maintenance Act, 1956 are extracted as

follows:

P a g e 2 | 20 Section 20 of the Hindu Adoption and Maintenance Act, 1956 :

- (1) Subject to the provisions of this Section a Hindu is bound, during his or her life-time, to maintain his or her legitimate or illegitimate children and his or her aged or infirm parents.
- (2) A legitimate or illegitimate child may claim maintenance from his or her father or mother so long as the child is minor.
- (3) The obligation of a person to maintain his or her aged or infirm parent or a daughter who is unmarried extends in so far as the parent or the unmarried daughter, as the case may be, is unable to maintain himself or herself out of his or her own earnings or other property.

Section 3(b) of the Hindu Adoption and Maintenance Act, 1956:

Section 3(b) "maintenance" includes - (i) in all cases, provision for food, clothing, residence, education and medical attendance and treatment; (ii) in the case of an unmarried daughter, also the reasonable expenses of and incident to her marriage.

[4] It is seen and observed that from the pleadings of the parties and on perusal of the impugned order, the respondent/petitioner herein claims maintenance allowance with the marriage expenses to be incurred in her marriage from her father, the appellant. Prior to that, instead of living with her mother since the separation of her mother and father and subsequent divorce, she never claimed maintenance for herself from her father (appellant).

P a g e 3 | 20 [5] It is also seen and observed that the respondent/petitioner relied upon for her maintenance including her education from her mother and brothers. It is also seen and observed that not only the respondent/petitioner, the two elder brothers who lived with their mother did not ask for maintenance including their education from the appellant/respondent.

[6] The appellant/respondent was serving as Police Officer (Sub-Inspector) in Manipur Police, Department enjoying salary of more than Rs. 35,000/- at the relevant point of time. The respondent/petitioner alleged that with the help of her mother and elder brothers very hardly completed her B.A. Course in the year 2014 from C.I. College, Bishnupur and now, she is joining a computer course at private Technology Firm at Bangalore by staying with her second elder brother, she further alleged that in earlier occasion she had approached the appellant/respondent to maintain her but the appellant/respondent did not care. By now, she is going to marry with one Laithangbam Santosh Singh, S/o (L) Shanti Singh of Bishnupur

Ward No. 9 as engaged by the relatives and such marriage was fixed on 16th Nov., 2016 for which the respondent/petitioner through her relatives approached the appellant/respondent on 20/08/2016 and 26/08/2016 to maintain the respondent/petitioner and also help her marriage ceremony. But, due to non-payment of the maintenance as well as the marriage expenses, the P a g e 4 | 20 respondent/petitioner filed the above referred case against the appellant/respondent on the following relief:

(a) a decree for maintenance allowance of Rs.

5,00,000/- from the appellant/respondent.

(b) a decree for Marriage Expenditure of Rs. 5,00,000/-

from the appellant/respondent.

(c) Interim maintenance.

(d) Cost of litigation.

(e) Pass appropriate order or orders in the nature of the case for the ends of justice.

[7] However, the appellant/respondent also contested the

above referred case before the Family Court, Bishnupur, Manipur thereby denying almost all the allegation of the respondent/petitioner stating that the appellant/respondent and his wife Smt. Leima Devi had been separated for more than 12 years ago and their marriage was dissolved by a Decree of Divorce passed in Mat (Div.) Case No. 61/2014/4/2014 of the Hon'ble Family Court, Bishnupur, Manipur for which the entire homestead land measuring an area of 0.10 acres including the house which include 13(thirteen) rented rooms and a sum of Rs. Rs. 1,00,000/-

in cash were given to the mother of the respondent/petitioner as alimony of the Divorce mother, by now the appellant/respondent is living in a rented house with another wife and not in state service as retiring from service during the pendency of the above referred case.

P a g e 5 | 20 [8] It is an admitted position of the fact that during the course of divorce between the mother of the respondent/petitioner and present appellant, in MAT (Div.) Case No. 61/2014/4/2014 in the Family Court, Bishnupur, as alimony, the present appellant has given 0.10 acres of land including 13 rented rooms and a sum of Rs. 1,00,000/- (Rupees one lakh). But, as per facts as set out by both the parties, the said alimony was only for the wife. But, there is no whisper from the side of the appellant petitioner about the maintenance for his children. In the facts and circumstances, the appellant/respondent cannot escape his duty as a father towards the respondent/petitioner.

[9] The appellant/respondent alleged that the arrange marriage said to be solemnized on 16th November, 2018, was not make known to him. He further alleged that while deciding the matter in issue the Ld. Judge, Family Court, Bishnupur had abruptly passed impugned order dated 02.04.2018 thereby directing the appellant/respondent to pay a sum Rs. 1,00,000/- (Rupees one lakh) for maintenance and Rs. 2,00,000/- for marriage expenses on the ground that the father of the respondent/petitioner has obligation to maintain his legitimate daughter till her marriage and to pay her marriage expenses even if the respondent/petitioner lives separately from her father and presumed that the appellant/respondent is a government employee and enable to provide such maintenance allowances and marriage expenses without P a g e 6 | 20 considering and looking into the statement adduced by the witnesses recorded at the time of cross examination and abruptly passed order dated 02.04.2018 and the same is not prepare the final decree and moreover, the Ld. Judge, Family Court, Bishnupur have converted the petition under section 20 read with Section 3(b) of the Hindu Adoption and Maintenance Act, 1956 as a criminal case without having any jurisdiction to convert and treated as Cril. Case. He further alleged that on the basis of the impugned judgment and order dated 02.04.2018, the respondent/petitioner filed an Execution case No. 8 of 2018 before the Hon'ble Family Court, Bishnupur, Manipur for enforcing the order and the Ld. Judge, Family Court, Bishnupur without preparing any Decree entertained the execution proceeding under Section 20 read with Sec 3(b) of the Hindu Maintenance Adoption Act, 1956. Being aggrieved by such impugned judgment and order 02.04.2018, the appellant/respondent preferred this present Mat. Appeal before this Hon'ble Court.

In this regard, the Hon'ble Supreme Court in "Abhilasha vs. Parkash & Ors. [(2021) 13 SCC 99]" observed that-

"23. The judgment of this Court in Jagdish Jugtawat is sheet anchor of the learned counsel for the appellant. The question which came up for consideration before this Court in Jagdish Jugtawat case has been noted in para 3 of the judgment which is to the following effect: (SCC p. 423) P a g e 7 | 20 "3. In view of the finding recorded and the observations made by the learned Single Judge of the High Court, the only question that arises for consideration is whether the order calls for interference."

24. This Court answered the question noticed in para 3 as above in para 4 in the following words: (Jagdish Jugtawat case, SCC pp. 423-24) "4. Applying the principle to the facts and circumstances of the case in hand, it is manifest that the right of a minor girl for maintenance from parents after attaining majority till her marriage is recognised in Section 20(3) of the Hindu Adoptions and Maintenance Act. Therefore, no exception can be taken to the judgment/order passed¹¹ by the learned Single Judge for maintaining the order passed by the Family Court which is based on a combined reading of Section 125, Code of Criminal Procedure and Section 20(3) of the Hindu Adoptions and Maintenance Act. For the reasons aforestated we are of the view that on facts and in the circumstances of the case no interference with the impugned judgment/order¹¹ of the High Court is called for.

26. In classical Hindu law prior to codification, a Hindu male was always held morally and legally liable to maintain his aged parents, a virtuous wife and infant child. Hindu law always recognised

the liability of father to maintain an unmarried daughter. In this context, we refer to Paras 539 and 543 of Mulla, Hindu Law, 22nd Edn., which is as follows:

"539. Personal liability: liability of father, husband and son. A Hindu is under a legal obligation to maintain his wife, his minor sons, his unmarried daughters, and his aged parents whether he possesses any property or not. The obligation to maintain these relations is personal in character and arises from the very existence of the relation between the parties.

Sections 18 and 20 of the Hindu Adoptions and Maintenance Act, 1956 deal with the question of maintenance of wife, children and aged parents. Reference may be made to the notes under those sections.

543. Daughter.-(1) A father is bound to maintain his unmarried daughters. On the death of the father, they are entitled to be maintained out of his estate."

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28. Section 20(3) of the Hindu Adoptions and Maintenance Act, 1956 is nothing but recognition of principles of Hindu law regarding maintenance of 9 children and aged parents. Section 20(3) now makes it statutory obligation of a Hindu to maintain his or her daughter, who is unmarried and is unable to maintain herself out of her own earnings or other property.

29. Section 20 of the Hindu Adoptions and Maintenance Act, 1956 casts a statutory obligation on a Hindu to maintain his daughter who is unmarried and unable to maintain herself out of her own earnings or other property. As noted above, Hindu law prior to enactment of the 1956 Act always obliged a Hindu to maintain unmarried daughter, who is unable to maintain herself. The obligation, which is cast on the father to maintain his unmarried daughter, can be enforced by her against her father, if she is unable to maintain herself by enforcing her right under Section 20.

32. The provision of Section 20 of the 1956 Act casts clear statutory obligation on a Hindu to maintain his unmarried daughter who is unable to maintain herself. The right of unmarried daughter under Section 20 to claim maintenance from her father when she is unable to maintain herself is absolute and the right given to unmarried daughter under Section 20 is rightly granted under Personal law, which can very well be enforced by her against her father. The judgment of this Court in Jagdish Jugtawat² laid down that Section 20(3) of the 1956 Act recognised the right of a minor girl to claim maintenance after she attains majority till her marriage from her father. Unmarried daughter is clearly entitled for maintenance from her father till she is married even though she has become major, which is a statutory right recognised by Section 20(3) and can be enforced by unmarried daughter in accordance with law.

36. The maintenance as contemplated under the 1956 Act is a larger concept as compared to concept of maintenance under Section 125 CrPC. Section 3(b) while defining maintenance gives an inclusive definition including marriage expenses in the following words:

"3. Definitions. In this Act unless the context otherwise requires-

(b) "maintenance" includes-

(i) in all cases, provision for food, clothing, residence, education and medical attendance and treatment;

(ii) in the case of an unmarried daughter also the reasonable expenses of and incident to her marriage;

P a g e 9 | 20

(c) "minor" means a person who has not completed his or her age of eighteen years."

In the present case, it is not denied that both the parties are Hindus and as such, governed by Hindu Law.

[10] The learned counsel for the appellant/respondent contended that the Ld. Judge, Family Court, Bishnupur failed to ascertain as to whether the respondents/petitioner actually informed the appellant/respondent about the marriage through her relatives or not. He further contended that the Ld. Judge without proper examination of the statement adduced by the witnesses recorded at the time of cross examination and abruptly passed order dated 02.04.2018. [11] The learned counsel for the appellant/respondent, further, contended that while observing issue No. 4, the Ld. Judge, Family Court, Bishnupur failed to consider the statement of the respondent/petitioner witnesses to the effect that whether the Respondent/Petitioner has sufficient income to maintain herself or not. Ignoring and neglecting such statement, the Ld. Judge, Family Court, Bishnupur passed such impugned order without applying her mind and without any evidence on record. He, further, submits that the monthly allowance of the appellant/respondent was not Rs. 35,000/- during the pendency of the case as he has already retired from service in the month of April, 2017. Therefore, the said impugned order is ill conceived and devoid of merit.

P a g e 10 | 20 And the factum of appellant income cannot be ignored while deciding such case in determining the quantum of marriage expenses as well as other maintenance allowances as such, apart from the lack of proper examination of the material on record available before this Court, the Ld. Family Court, Bishnupur Manipur had abruptly passed such order of marriage expenses without any specific calculation inspite of the fact that the respondent/petitioner never informed the appellant/ respondent about their arrange marriage and moreover, in the marriage invitation card, the name of the father was not included.

[12] As per the pleadings as stated above, the respondent/petitioner did not ask for day-to-day maintenance from the appellant/respondent from the time she started living with her mother and brothers and the present maintenance and expenses are the only monetary expenses asked for from her father(appellant/respondent).

The relation between the appellant/respondent and respondent/petitioner are father-daughter relationship not the business partner where calculation of day-to-day business activities and accounts are required.

On perusal of the invitation card referred to above, it is found that the said invitation card which is relied upon by the P a g e 11 | 20 respondent/appellant is the groom's invitation card not bride's invitation card.

[13] However, in the instant case, it is seen and observed that the present respondent/petitioner's income is not shown but, as per the pleading of the respondent/petitioner, she relied upon even for her studies on her mother and brothers.

In this regard, the Hon'ble Supreme Court in Padmja Sharma vs. Ratan Lal Sharma [(2004) 4 SCC 266] observed that -

"10. Maintenance has not been defined in the Act or between the parents whose duty it is to maintain the children. The Hindu Marriage Act, 1955, the Hindu Minority and Guardianship Act, 1956, the Hindu Adoptions and Maintenance Act, 1956 and the Hindu Succession Act, 1956 constitute a law in a coded form for the Hindus. Unless there is anything repugnant to the context definition of a particular word could be lifted from any of the four Acts constituting the law to interpret a certain provision. All these Acts are to be read in conjunction with one another and interpreted accordingly. We can, therefore, go to the Hindu Adoptions and Maintenance Act, 1956 (for short "the Maintenance Act") to understand the meaning of "maintenance". In clause (b) of Section 3 of this Act "maintenance includes - (i) in all cases, provision for food, clothing, residence, education and medical attendance and treatment; (ii) in the case of an unmarried daughter also the reasonable expenses of and incident to her marriage;" and under clause (c) " 'minor' means a person who has not completed his or her age of eighteen years".

Under Section 18 of the Maintenance Act a Hindu wife shall be entitled to be maintained by her husband during her lifetime. This is of course subject to certain conditions with which we are not concerned. Section 202 provides for maintenance of children and aged parents. Under this section a Hindu is bound, during his or her lifetime, to maintain his or her children. A minor child so long as he is a minor can claim maintenance from his or her father or mother.

P a g e 12 | 20 Section 20 is, therefore, to be contrasted with Section 18. Under this section it is as much the obligation of the father to maintain a minor child as that of the mother. It is not the law that how (sic howsoever) affluent the mother may be it is the obligation only of the father to maintain the minor."

[14] The learned counsel for the appellant/respondent, further, submitted that even assuming but not admitting the fact that the impugned judgment and order dated 02.04.2018 was passed after consideration of all the material records available before the Hon'ble Trial Court, till date the Decree

is not yet prepared as per law. As such, the Judgment and Decree dated 02.04.2018 passed in Cril. (Maintenance) Case No. 1 of 2018 of the Hon'ble Family Court, Bishnupur, Manipur could not and should not stand therefore, the impugned order is ill conceived, illegal and not binding to the appellant/respondent and deserves to be rejected forthwith.

[15] The learned counsel for the appellant/respondent, further, contended that the Ld. Judge, Family Court, Bishnupur, Manipur has any jurisdiction to entertain and heard the matter in issue under Section 3(b) read with 20 of the Hindu adoption and maintenance Act as a criminal case. Registering and maintaining such a Civil Suit as a Criminal Case is very much contrary to the very provision of law. As such, the judgment and order dated 02.04.2018 passed in Cril. (Maintenance) Case No. 1 of 2018 is not tenable in the eyes of law inasmuch as the Ld. Judge, Family Court, Bishnupur, Manipur has no inherent power and jurisdiction to convert a Civil Case into a Criminal Case. Therefore, the impugned P a g e 13 | 20 judgment and order dated 02.04.2018 is perverse, ill conceive; hence, it is not tenable in the eyes of law and deserved to be rejected forthwith. He, further, contended that the finding/observation of the Ld. Judge, Family Court is irrational, perverse, vexatious and capricious and the same is liable to be quashed and set aside to maintain the justice.

Here also, we relied upon the Hon'ble Supreme Court's observation made in "Abhilasha vs. Parkash & Ors. [(2021) 13 SCC 99]"(supra). It is undeniably very clear that Section 20(3)(ii) of the Hindu Adoption and Maintenance Act, 1956 clearly stated that the father is duty bound to pay reasonable expenses during the incident of her marriage.

[16] It is an admitted position of the fact that the respondent/petitioner filed the said Cril. Maintenance Case No. 1 of 2018 under Section 20 read with Section 3(b) of the Hindu Adoption and Maintenance Act, 1956 claiming for maintenance allowance with the marriage expenses to be incurred for her marriage ceremony. In this regard, the Hon'ble Supreme Court in Jagdish Jugtawat vs. Manju Lata & Ors. [(2002) 5 SCC 422] observed that -

"4. Applying the principle to the facts and circumstances of the case in hand, it is manifest that the right of a minor girl for maintenance from parents after attaining majority till her marriage is recognized in Section 20(3) of the Hindu Adoptions and Maintenance Act. Therefore, no exception can be taken to the judgment/order passed by the learned Single Judge for maintaining the order passed by the Family Court which is based P a g e 14 | 20 on a combined reading of Section 125 CrPC and Section 20(3) of the Hindu Adoptions and Maintenance Act. For the reasons aforesaid we are of the view that on facts and in the circumstances of the case no interference with the impugned judgment/order of the High Court is called for."

Considering the observation made above by the Hon'ble Supreme Court, we are of the view that the Ld. Family Court rightly dealt with the case and passed the impugned order.

[17] On 27.02.2023, the learned counsel for the appellant/respondent filed an Additional Affidavit on behalf of the appellant/respondent in which he had presented an invitation card filed by the

appellant. He had further contended that on careful perusal of such marriage invitation card, the respondent/petitioner have intentionally and willfully desisted from putting the name of the appellant/respondent of being a father thereby completely discharging the moral obligation of being a father of the respondent/petitioner in the society. The said Invitation Card is very much necessary to settle the matter in issue.

[18] In support of the case, the learned counsel appearing for the appellant/respondent referred to the decisions of the Hon'ble Supreme Court, which run as under:

P a g e 15 | 20 Rajnesh v. Neha & Anr. [(2021) 2 SCC 324] -

"73. Parties may lead oral and documentary evidence with respect to income, expenditure, standard of living, etc. before the court concerned, for fixing the permanent alimony payable to the spouse.

75. Provision for grant of reasonable expenses for the marriage of children must be made at the time of determining permanent alimony, where the custody is with the wife. The expenses would be determined by taking into account the financial position of the husband and the customs of the family.

76. If there are any trust funds/investments created by any spouse/grandparents in favour of the children, this would also be taken into consideration while deciding the final child support.

79. In *Manish Jain v. Akanksha Jain*, this court held that the financial position of the parents of the applicant wife, would not be material while determining the quantum of maintenance. An order of interim maintenance is conditional on the circumstance that the wife or husband who makes a claim has no independent income, sufficient for her or his support. It is no answer to a claim of maintenance that the wife is educated and could support herself. The court must take into consideration the status of the parties and the capacity of the spouse to pay for her or his support. Maintenance is dependent upon factual situations; the court should mould the claim for maintenance based on various factors brought before it.

82. Section 23 of the HAMA provides statutory guidance with respect to the criteria for determining the quantum of maintenance. Sub-Section (2) of Section 23 of the HAMA provides the following factors which may be taken into consideration: (i) position and status of the parties, (ii) reasonable wants of the claimant, (iii) if the petitioners/claimant is living separately, the justification for the same, (iv) value of the claimant's property and any income derived from such property, (v) income from claimant's own earning or from any other source."

State of Madhya Pradesh v. Narmada Bachao Andolan & Anr. [(2011) 7 SCC 639 -

"8. It is a settled proposition of law that a party has to plead its case and produce/adduce sufficient evidence to substantiate the averments made in the petition and in case the pleadings are not complete, the court is under no obligation to entertain the pleas.

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9. In *Bharat Singh v. State of Haryana*, this Court has observed as under (SCC p. 543, para 13) "13. In our opinion, when a point which is ostensibly a point of law is required to be substantiated by facts, the party raising the point, if he is the writ petitioner, must plead and prove such facts by evidence which must appear from the writ petition and if he is the respondent, from the counter-affidavit. If the facts are not pleaded or the evidence in support of such facts is not annexed to the writ petition or the counter-affidavit, as the case may be, the court will not entertain the point..... there is a distinction between a pleading under the Code of Civil Procedure and a writ petition or a counter-affidavit. While in a pleading, this is, a plaint or a written statement, the facts and not (the) evidence are required to be pleaded, in a writ petition or in the counter-affidavit not only the facts but also the evidence in proof of such facts have to be pleaded and annexed to it. (emphasis supplied).

A similar view has been reiterated by this Court in *Larsen & Toubro Ltd. V. State of Gujarat*, *Atul Castings Ltd. V. Bawa Gurvachan Singh* and *Rajasthan Pradesh Vaidya Samiti v. Union of India*.

10. Pleadings and particulars are required to enable the court to decide the rights of the parties in the trial. Thus, the pleadings are more to help the court in narrowing the controversy involved and to inform the parties concerned to the question(s) in issue, so that the parties may adduce appropriate evidence on the said issue. It is settled proposition that "as a rule relief not founded on the pleadings should not be granted". Therefore, a decision of a case cannot be based on grounds outside the pleadings of the parties."

Virendra Kashinath Ravat & Anr. v. Vinayak N. Joshi & Ors. [(1999) 1 SCC 47] -

"17. The object of the Rules is twofold. First is to afford the other side intimation regarding the particular facts of the case so that they may be met by the other side. Second is to enable the court to determine what is really the issue between the parties. The words in the sub-rule "a statement in a concise form" are definitely suggestive that brevity should be adhered to while drafting pleadings. Of course brevity should not be at the cost of setting out necessary facts, but it does not mean niggling in the pleadings. If care is taken in the syntactic progress, pleadings can be saved from tautology. Elaboration of facts in pleadings is not the ideal measure and that is why the sub-rule embodied the phrase "and contain only" just

before the succeeding words "a statement in a concise form of the material facts".

[19] In view of the facts and circumstances and as per our observation made above, we observe that the above cited cases relied upon by the appellant/respondent is not applicable in the instant case.

[20] After applying the principle to the facts and circumstances of the case in hand and also considering the submissions made above by the learned counsels for the parties and after taking note of the settled law enunciated by the Hon'ble Supreme Court rendered in the extracted cases (supra), we observe the following:

A Hindu father under legal obligation to maintain his unmarried daughter(s) and obligation to maintain this relation is personal in character and arises from the very existence of the relation between the parties.

It is manifest that right of a minor girl for maintenance from parents after attaining majority till her marriage is recognized in Section 20(3) of the Hindu Adoption and Maintenance Act, 1956.

It is statutory obligation of a father to maintain his daughter who is unmarried and unable to maintain herself, as such cast upon the father to maintain his unmarried daughter and the father is under obligation to incur reasonable expenses of an incident to her marriage.

P a g e 18 | 20 This right can be enforced upon by the daughter against her father. It is customary of the parents of the son/daughter who is getting married to deploy their resources for the wedding to the best of their financial capacity. This is particularly true when marrying of a daughter, as the parents try to ensure that she is well provided for in the matrimonial home when she would begin her new life.

Every father is under an obligation to maintain his daughter and even to get them married; the obligation to maintain the daughter and get her married is said to be personal in character and arises from the very existence of the relationship.

Now, we come to the question of quantum of the expenses of the marriage, as per Section 3(b)(ii) of the Act, in case of an unmarried daughter, maintenance include not only the reasonable expenses of marriages but also expenses incident to her marriage i.e. which are directly incurred for marriage and which are incurred indirectly or incidentally to the marriage. In the instant case, the Ld. Family Court rightly awarded the maintenance in two parts i.e. Rs. 1,00,000/- for maintenance and Rs. 2,00,000/- for marriage expenses.

[21] The Hon'ble Supreme Court in *Rajnesh v. Neha & Anr.* [(2021) 2 SCC 324] observed that -

"Both, the working mother and working father, have to take the liability of the child and if the mother is working, it does not mean that the father will be absolved from taking responsibility of his child. The father is legally bound to maintain his child according to the status and life style. Hon'ble Supreme Court has taken a serious note in Para-13, wherein it is provided that maintenance laws have been enacted as a measure of social justice to provide recourse to dependent wives and children for their financial support, so as to prevent them from falling into destitution and vagrancy."

After due consideration of the above stated, we come to the conclusion that the appellant is undeniably responsible/duty bound to maintain and to bear the expenses for the marriage of his daughter i.e. the present the respondent/petitioner.

[22] For the reasons aforesaid, we are of the view that on the facts and circumstances of the case, no interference with the impugned order of the Ld. Family Court, Bishnupur is called for. [23] Accordingly, the present Matrimonial Appeal No. 10 of 2018 is dismissed as devoid of merit. The appellant is directed to pay the awarded amount mentioned above to the respondent/petitioner within a period of 1 (one) month from the date of receipt of a copy of this judgment & order.

[24] Send an extract copy of this order to the Ld. Family Court, Bishnupur.

JUDGE

CHIEF JUSTICE

FR/NFR

Bipin